

Carolina Arbors by Del Webb

RULES AND REGULATIONS

Version 1.14

July 2025

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INTRODUCTION

The facilities and programs at Carolina Arbors were developed by Carolina Arbors by Del Webb Homeowners Association, Inc. (the “Association”) specifically for our residents (also called members) and their guests.

These operating rules and regulations serve as an integral part of the policies included in the Association’s Governing Documents (as that term is defined in the Carolina Arbors Declaration). As such, the attached information should not be considered an all-inclusive list of the operating guidelines and responsibilities of every homeowner. We appreciate your support in our endeavor to provide a safe and desirable environment for all of our residents to enjoy the numerous benefits of living in a Del Webb community.

CHAPTER ONE

MEMBERSHIP & VOTING

1.1 Membership & Voting:

- A. The authority granted to the HOA Board to make and enforce such Rules and Regulations is provided in Section 6.01 of the Bylaws and further provided in Section 4.3 of the Declaration.
- B. The right of the Association to regulate use of the common areas and any recreational facilities is vested in the Association’s HOA Board, including without limitation the ability to restrict the use of such areas and facilities. Such decisions are made at the sole discretion of the HOA Board in its exercise of reasonable business judgment.
- C. The HOA Board and the Association’s Covenants Committee will assess fines and adopt a fee schedule for violations of the rules and regulations. The HOA Board may also impose additional penalties in conjunction with fines.

CHAPTER TWO

GENERAL USE POLICIES/FACILITIES

2.1 Use of Facilities and Assumption of Risk: All use of the Carolina Arbors facilities and all participation in Carolina Arbors programs is purely voluntary. Correspondingly, the recreational nature of all activities and programs potentially involves some personal or physical risk on the part of the participant. Program participation by a member or guest is, therefore, interpreted as tacit acknowledgement and acceptance of the inherent risks.

- A. The Association strives to consistently maintain its facilities in the highest quality condition. However, periodic wear and tear, as well as seasonal or climatic factors, may temporarily render an area in less than optimum condition. If such a condition occurs, members and guests should immediately contact the Community Association Manager for assistance.
- B. Unless negligence on the part of the Association is confirmed, the Association is not liable for personal injury or inconvenience sustained during the use of any Carolina Arbors facilities or programs.

2.2 Conduct of Members and Discipline:

- A. General Rule of Courtesy - All members are expected to abide by the Governing Documents and these rules, and to conduct themselves in a courteous and respectful manner at all times. Actions that jeopardize or otherwise interfere with the rights and privileges of others, including without limitation the use of profanity, or otherwise abusive or disruptive behavior will not be tolerated.
- B. Interference with Employees - Any inattention to duty, or discourtesy on the part of an Association employee should be immediately reported to the Community Association Manager who, in turn, should report it to the HOA Board. However, under no circumstance will members or guests interfere with, attempt to discipline, or otherwise direct an Association employee in the course of Association business.
- C. Safety Is Paramount - Any member or guest not adhering to the posted or otherwise obvious safety rules may be asked to leave by the Association Management. Any complaint relating to a Community Association Manager's decision may be later appealed to the HOA Board. However, until such appeal is heard, the Community Association Manager's decision stands. Arguing, being abusive, or otherwise challenging the Community Association Manager may result in disciplinary action.
- D. Guests - Conduct of guest(s) remains the responsibility of the sponsoring

member.

- E. Rule Infractions - Members charged with rule violations will be asked to appear at a disciplinary hearing before the Association's Covenants Committee and/or the HOA Board to explain and justify their actions. If the HOA Board determines that a rule was violated in a willful or otherwise deliberate manner, the HOA Board will impose penalties including suspension of facility privileges.

2.3 Dress Code:

- A. Proper dress is required in all facilities at all times. For specific facilities and locations in Carolina Arbors the HOA Board may opt to designate specific attire requirements.
- B. Appropriate casual attire for men includes footwear, shirts and pants or shorts. For women, footwear, dresses or blouses or shirts and pants or skirts or shorts are appropriate. Upper body garments must be worn in all activities, except for men using aquatic facilities. Appropriate athletic apparel is required in all indoor and outdoor sports areas, including proper footwear.

- 2.4 No Smoking Policy: The Association provides a smoke-free/vaping-free environment for its members and guests and all buildings and common areas are designated as non-smoking areas.

CHAPTER THREE

MEMBERSHIP CARD, FEES, AND GUESTS

3.1 Member Identification Cards (Photo IDs)

- A. Section 2.2 of the Declaration provides that owners of lots occupied by an age-qualified* occupant are entitled to receive up to two (2) Identification Cards for use by the qualified occupants.
- B. Identification Cards will be issued at the Clubhouse reception desk once verification is provided that the lot continues to be occupied by an age-qualified* occupant and that all assessments and other charges pertaining to the lot have been paid to the Association. Only members who possess and present valid Identification Cards, as further defined, are entitled to use the recreational facilities. Unauthorized use of Identification Cards or use of false information in obtaining Identification Cards will result in fines, loss of membership privileges or other enforcement information.

- C. All Identification Cards must contain the cardholder's photograph, either on the card or stored electronically. One additional Identification Card may be purchased for other residents nineteen (19) years of age or older permanently residing with an age-qualified* occupant. Rates for the additional Identification Card will be set by the HOA Board, and may be adjusted from time to time, and may be purchased at the Clubhouse reception desk. Students spending summers and/or vacationing persons not residing permanently in the residence will not be eligible for additional Identification Cards and will be considered guests. Guests must be accompanied by an age-qualified* member when entering facilities not intended for public use. Members may acquire Guest passes as outlined in Section 3.2 below.

* "age-qualified" is defined in the Covenants.

3.2 Guest Identification Passes (Guest Passes)

- A. Each household is eligible to receive twenty-four (24) Guest passes annually. Guest passes are available at the Clubhouse reception desk. A maximum of four (4) guests per household are permitted at any given time and restricted hours for guest use will apply in some areas.
- B. Unaccompanied guests are not permitted to use any of the amenities, with the exception of those visiting as the developer's guest, if applicable.

3.3 Renter's Identification Cards (Renter's Card):

- A. Section 2.5 of the Declaration provides that any owner who leases or otherwise transfers occupancy of his or her lot to an age-qualified person(s) shall be deemed to have assigned his or her rights to its/their Identification Card(s) to the renter of such lot provided the following circumstances apply:
 - 1. The member (lessor) must be current and in good standing with the Association. The renter (lessee) must not be the subject of any disciplinary action of the Association.
 - 2. The member (lessor) or renter (lessee) must deliver to the Association a copy of the signed lease agreement and pay to the Association any security deposit as set by the HOA board, which may be adjusted from time to time.
 - 3. Any member (lessor) delegating membership privileges to a renter (lessee), must relinquish its/their Identification Cards prior to the issuance of a Renter's Card. The member's(s') Identification Card(s) will be retained by the Community Association Manager for the term of the lease.
 - 4. An additional, nonrefundable processing fee may be charged for issuance of Renter's Cards, as set by the HOA Board, and may be adjusted by the HOA

Board from time to time.

5. Renters (lessees) presenting valid Renter's Cards shall have all privileges associated with membership, except the right to vote in Association affairs.
6. Renters' Cards will be revoked at such time as the renter (lessee) no longer resides in the community and/or upon termination of the lease agreement. Assessment bills will be mailed to the member (lessor) of record.
7. Renters (lessees) must return all Renter and Guest Cards upon termination of lease agreement.

3.4 Temporary Identification Cards: The Declarant may issue Temporary Identification Cards or Passes to persons who have signed binding contracts to purchase a lot in Carolina Arbors subject to policies as the HOA Board may determine. The following rules are applicable to Temporary Identification Cards:

- A. Each person who has made a down payment on a lot may, for a monthly charge, receive one Temporary Identification Card valid for the time projected until the date of closing on the lot. Payment of this fee is required in full at the time of issuance of the Temporary Identification Card.
- B. Temporary Identification Cards will expire upon the earlier of the close of escrow on the lot or termination of the purchase contract.
- C. Temporary Identification Cards do not entitle the holder to any Guest Cards.

3.5 Developer Guests: Special provisions have been made for the Declarant, which permit use of Association recreation facilities by potential customers of the Declarant, subject to established charges for such use. Guests of the Declarant will be appropriately identified and will adhere to all membership rules and regulations.

3.6 Identification Card Rules:

- A. Identification Cards will be issued to each qualified member. Members must have their Identification Cards when entering recreation facilities.
- B. Guests entering the fitness center or any staff-supervised activity must report to the front reception desk to sign in and receive a guest pass. Guests entering unsupervised recreational facilities must be (a) prepared to offer a valid Guest Pass, (b) accompanied by an age-qualified member, and (c) meet the guest requirements established by the managing club or activity.
- C. The Association may require presentation of valid Identification Cards at entrances of recreation facilities.

- D. The Association may conduct random checks for Identification Cards to ensure compliance with card policy.
- E. Members may register for various activities and classes upon presentation of a valid Identification Card.

CHAPTER FOUR

GENERAL FACILITY OPERATING RULES

4.1 Bulletin Boards and Scrolling Boards:

- A. Only Association activities, Association-approved activities or Declarant-sponsored activities may be advertised on the bulletin boards.
- B. Religious writing or literature may not be posted on bulletin boards.
- C. Commercial solicitation of any nature may not be placed on bulletin boards.
- D. The Lifestyle Director or Community Association Manager must approve all announcements before they are posted on the bulletin boards.
- E. All announcements must meet the bulletin board posting standards as determined by the Lifestyle Director. As of the date of this publication, the posting standards limit posting size to 8 ½ x 11 inches and posting duration to a maximum of sixty (60) days, but the Lifestyle Director may amend the posting standards from time to time.
- F. Chartered Clubs may not post more than one announcement on the bulletin boards at any given time.
- G. No posters, easels, or freestanding advertisements will be permitted in the clubhouse facilities unless approved by the Lifestyle Director or Community Manager.

4.2 Community Relations:

- A. Association's HOA Board and Committees - Any meeting of the Association's HOA Board, as well as all delegated committees (standing or ad hoc) of the HOA Board, shall have priority over all other activities. These meetings will be posted and otherwise announced to members as appropriate.
- B. Lifestyle Events – The Lifestyle Director will schedule all events sponsored by the Association (e.g. holiday events and other functions coordinated by the Lifestyle Director).

- C. Chartered Club Meetings - All regularly scheduled meetings of Chartered Clubs will be coordinated through the Lifestyle department. Any deviation from the regular schedule must be pre-approved by the Lifestyle Director before rescheduling may occur. Any scheduled Chartered Club regular meeting will take precedence over another club's special event.
- D. Non-chartered Clubs - Any non-chartered clubs may request meeting space within the clubhouse facilities provided their activities are in part made up of Carolina Arbors members. Any non-chartered club's request for space shall be subject to approval by the Lifestyle Director. Non-chartered club events will be scheduled by the Lifestyle Director upon approval of a facility reservation contract for the use of Clubhouse facilities.
- E. Outside events will be allowed on a limited basis and should generally support the Lifestyle of the community. Arrangements must be made through the Lifestyle Director.
- F. Private Events – Members may reserve select recreation facilities for a private event, after getting the approval of the Lifestyle Director and signing a reservation contract. The reservation contract and deposit payment locks in the room use. Private functions may be prohibited if, in the judgment of the Lifestyle Director, such events would detract from the enjoyment of Clubhouse facilities by the general membership. Children's parties are prohibited.
- G. Unscheduled Activities - Unscheduled activities for residents, if approved by the Lifestyle Director, may take place in the Clubhouse facilities provided that such space is not already reserved.
- H. All rooms may be used by the general members of the HOA. The Community Manager or Lifestyle Director may reserve space specifically for general membership use.

4.4 Clubhouse room use:

- A. Moveable walls provide added flexibility to configure rooms for small and large functions. Room capacities and various setup arrangements can be obtained from facilities management. Audiovisual equipment and individual room sound controls may be provided upon request.
- B. Rooms may be decorated for reserved events in good taste, but only with the advance approval of the Lifestyle Director. Under no circumstances will decorations be allowed that mar or otherwise alter the interior décor of the facility. Decorations shall be removed at the conclusion of the applicable reservation.
- C. Entertainment groups may be contracted by the Association, or by a sponsoring group approved by the Association. Due to sound system and electrical requirements, close coordination is required with the property management team. If professional film, script, production, or sound type

entertainment is provided, close coordination is required with the Lifestyle Director to ensure that proper licensing and/or royalty fees have been accommodated, or waived.

- D. Outside events will be allowed on a limited basis and should generally support the Lifestyle of the community. Arrangements must be made through the Lifestyle Director.

4.5 Alcohol: The North Carolina Alcoholic Beverage Control (“ABC”) Commission regulates and controls the manufacture, distribution, advertisement, sale, possession and consumption of alcoholic beverages in North Carolina.

- A. Excluding “bring your own bottle” (BYOB) situations and approved Club events, alcohol may only be provided by a catering establishment with the appropriate ABC licenses.
- B. A copy of the catering establishment’s ABC licenses and approval from the Lifestyle Director is required prior to filling out the room reservation forms.
- C. The event sponsor shall remain responsible for the conduct and propriety of the event.

4.6 Fitness Centers in General:

- A. Operational responsibility for all fitness center areas, including the swimming pools and spa, rests with the Community Manager. The Community Manager may appoint Facility Monitors to oversee fitness center policies and rules. Maintenance of the fitness center facilities rests with the Maintenance Supervisor. Designated fitness specialists, who are qualified fitness instructors, will be made available to provide instruction on the use of fitness equipment and programs, and counseling on personal and group fitness regimens. Facility Monitors should be trained in basic CPR, but they should not be viewed as fitness specialists or lifeguards or as being able to provide a qualified level of fitness or aquatic program supervision.
- B. Some programs and services will be made available to residents at no cost, while a reasonable fee, may be assessed for participation and/or equipment (when applicable) in others.
- C. Locker rooms and showers are provided for use and enjoyment of residents and guests. Lockers are available on a first come, first serve basis and keys will be provided upon check in at the front desk. All locker and shower facilities are accessible for the physically challenged. Clothing or personal effects should not be left unattended or unsecured in these areas, as safekeeping shall be the responsibility of the user.

- D. In fitness center, exercise rooms and locker/shower areas, food or beverages are not permitted with the exception of water in non-breakable bottles.
- E. Towels are not provided and are the responsibility of the member/guest.
- F. All users are expected to comply with posted rules and verbal instruction from the staff.
- G. Hours of the fitness center will be the same as the operating hours of Piedmont Hall. Hours may be adjusted to accommodate circuit or fitness classes as determined by Association staff.
- H. Prior to using the Exercise Equipment Room, or engaging in any form of fitness program, individuals should consult a physician.
- I. All users are expected to observe the posted rules concerning proper and safe use.
- J. Special minimum age requirements for the use of specific areas may be posted.

4.7 Fitness Center/Exercise Equipment Room:

- A. The Exercise Equipment Room is intended to promote low-to-medium-range strength, muscle toning and cardiovascular exercise. Individualized programs may also be developed for personal fitness needs through the fitness specialist and/or personnel. Group fitness classes (circuit classes) may also be offered.
- B. Prior to using the Exercise Equipment Room, members and guests must attend a basic fitness orientation and training program for the proper and safe use of exercise equipment. Training classes are scheduled on a regular basis for the convenience of members.
- D. The equipment in these areas is designed for strength and cardiovascular training.
- E. Children and guests under the age of nineteen (19) are restricted from use of the Exercise Equipment Room.
- F. Appropriate fitness apparel is required. Sandals, shower clogs or other similar items and street shoes are not acceptable fitness footwear.
- G. Due to high demand from members, some equipment may be subject to time limits on use. If there are no individuals waiting to use one of these

items, individuals may continue their workout beyond the established time limit. Association management reserves the right to impose a reservation system on equipment.

- H. Following use, equipment should be wiped down. All portable equipment (dumbbells, exercise mats, etc.) should be returned to their proper storage locations.
- I. Audio and television systems are provided for the convenience and enjoyment of members and guests. Programs will be tuned to satisfy the interests of the majority, but the final decision rests with the Lifestyle Director or Community Manager. Portable radios are permitted, but only with earphones.

4.8 Aerobic Dance/Flex Space:

- A. The Aerobic Dance/Flex Space is intended to promote low-to-medium-impact aerobic exercise, aerobic dance, and stretching programs. Due to the nature of these programs, preference is given to group lessons and group instructional programs. Individuals may use this facility in a self-directed manner only when group programs are not scheduled.
- B. Children and guests under the age of nineteen (19) are restricted from use of Aerobic Dance/Flex Space.

4.9 Swimming Pools (Indoor and Outdoor) & Spa:

- A. General Rules:
 - 1. Pool hours will vary based on seasonal demands and Durham County permit periods. Specific operating hours will be posted and published.
 - 2. **Children in diapers or under the age of 4 are not permitted in the water at the indoor or outdoor pool at any time.** Such children only are permitted in the deck areas of the pool under adult supervision, and as long as they do not disturb members and guests. Children 4 years and older who are fully toilet trained may only swim during children's swim hours, as periodically designated by the HOA Board, and they must have age-qualified resident adult supervision. The resident who brings a child to a pool is responsible for the cost of cleanup in the event of an accident. Members choosing to swim during the specified children's hours should be sensitive to the nature of youth activity and the presence of children in the pool environment.
 - 3. Children's pool hours: Monday – Sunday 3:00 PM – 5:00 PM
 - 4. Portable radios are not allowed around or in the pools, but may be used on the deck and lounge areas with earphones.

B. Sanitation

1. Chemicals are used in the pools and spa to ensure a sanitary and safe water environment and conditions will be tested and documented on a regular basis. If unacceptable conditions occur, facilities management reserves the right to close the facility at any time to preserve the health and wellbeing of members and guests.
2. Showers must be taken before entering the pool. If using sun oils or lotions showers must be taken prior to each entry into the pool.
3. Food and canned nonalcoholic beverages may be used only in areas where tables and trash receptacles have been provided. Food or beverages are not permitted in the pool or on the surrounding deck apron. No glass containers of any kind are permitted.
4. Swimsuits are required. Cutoffs or other forms of street clothes are not acceptable.
5. Adults requiring diapers must wear swim-type diapers

C. Safety:

1. Lifeguards are not provided and facilities are designated as "Swim At Your Own Risk". Life buoys and "shepherd's crooks" are available at poolside for emergency use only.
2. Due to the heavy patron traffic expected, as well as the decorum desired for the pools and spa, toys/games of any nature are not permitted. Inflatable devices are not permitted during heavy pool use. Specific exemptions may be granted for participants of water aerobics programs, workout swimmers, and water volleyball play time. If medical conditions warrant, exemptions may also be granted when the need is certified in writing by medical authority, approved by the Lifestyle Director and filed with the Community Manager. Small children in the pool, under the direct supervision of an age-qualified resident adult and only during times permitted for use by children of its age group, may wear inflatable arm devices as precautionary safety measures.
3. Alcoholic beverages are not permitted during normal operations, but may be authorized by the HOA Board or Lifestyle Director during special events, provided the same is in compliance with applicable law. In no instance will alcoholic (or nonalcoholic) beverages be allowed in the pools or spa.
4. Running or other boisterous behavior is not permitted.
5. If lightning is observed in the local area, residents and guests should vacate

all pool areas and adjacent deck areas until a safe environment is restored.

6. Lane dividers are used as a safety measure to separate lap swimmers from other pool users, properly guide the lap swimmer, and preclude injury from interference outside the lanes. Disturbing the lane markers in any way is not permitted.

D. Association and Group Pool Events

1. The Lifestyle Director is responsible for approving requests for association and club pool events. Once approved, the dates and times of such events will be publicized well in advance.
2. The Lifestyle Director may authorize times for physically challenged groups or those desiring instructed aquatic exercise. In all cases, these times will be posted.
3. Special devices for the physically challenged, such as entry ramps are self-serve and may be used at the discretion of the member/guest.
4. Unless a group activity has been authorized, a minimum of two lanes will be separated by floating lane dividers and used for lap swimming. If lap swimmers are waiting, lap lanes are not to be used for walking, or other non-swim activity. When both lanes are occupied, lanes will be shared, and individuals will swim to the right. If lanes are fully occupied, and individuals are waiting to swim, time of use will be limited to forty-five (45) minutes.

4.10 Spa:

- A. Swim suits are required. Cutoffs or other forms of street clothes are not acceptable. Showers must be taken before entering the spas.
- B. Children under the age of nineteen (19) are not permitted in the spa.
- C. Swimming in the spa is not permitted, and vigorous exercise should be avoided. Spa water is maintained in an approximate temperature range of 102-104 degrees Fahrenheit and is intended to relax muscles. In this environment, exercise has a tendency to aggravate an ailment rather than improve it.
- D. While the time limit for use of the spa may vary from one member to another, fifteen (15) minutes is generally considered to be sufficient for muscle relaxation and general enjoyment. When exiting the spa, do so very slowly and carefully, using the steps and handrails.
- E. Individuals with hypertension, heart conditions, or those on medication for

any reason should not use the spa without first consulting a physician. Individuals who have recently consumed alcoholic beverages should avoid using the spa altogether.

F. Food or beverages are not permitted in or around the spa.

4.11 Ballroom/Multi-Purpose Rooms/ Varsity Room:

A. Ballroom, Multi-Purpose Rooms, Varsity Room and Meeting Room facilities may be reserved through the Lifestyle Director or Lifestyle Director's designee. Rooms will generally be provided at no fee to Chartered Clubs and Association special events (see Section 4.3). As the membership population grows, the Homeowner HOA may set reasonable limits on the number of times facilities may be booked on a complimentary basis, which may be modified from time to time. The Homeowner HOA may establish fees for reserved use of facilities.

4.12 Billiards Room:

- A. Unless closed by the Association or Lifestyle Director for maintenance purposes, club or lifestyle events, the Billiards room will be open daily during the operating hours of Piedmont Hall.
- B. For both the safety of individuals and the protection of equipment, sitting on the billiard tables is not permitted. The use of a bridge is an acceptable option for billiards; all other shots require that one foot remain on the floor. For the further protection of the tables, masse' shots are not permitted (shooting straight down on the ball).
- C. Billiard balls and cue sticks must remain in the room, and be returned to their original locations when play is completed.
- D. As long as individuals are waiting to play, table time is limited to 3 games.
- E. Food or beverages are not permitted on billiard tables.
- F. Children under 19 years of age are not permitted to use the Billiards room.
- G. Additional rules on the use of the Billiards room may be posted.

4.13 Media Lounge:

A. Operational responsibility for the Media Lounge rests with the Lifestyle Director and Community Manager. This area is operated on a self-serve, honor system basis for members only. Individuals requiring assistance with the use of the computers provided should inquire at the Clubhouse reception desk

4.14 Business Center:

- A. A small fee will be charged for the use of the copy and fax equipment to support the direct and indirect cost of services.
- B. Support personnel at the clubhouse reception desk will monitor payment of fees

4.15 Arts & Crafts/Pottery Studio:

- A. The Arts & Crafts and Pottery Studio provides space for a diversity of crafts related to Chartered Clubs and their activities. During their reserved times, Chartered Clubs control their designated space and may provide their own Monitors and set hours of operation for their assigned facilities. Chartered Clubs are subject to Association administrative rules and guidelines, established by the Homeowner HOA

4.16 Kitchens:

- A. Kitchen responsibilities for all Clubs and private party rentals:
 - 1. Kitchen must be left clean and in good order.
 - 2. Report any problems to the clubhouse reception desk. All problems should be documented on a comment/suggestion form.
- B. Refrigerator usage:
 - 1. All stoves, ovens and microwaves are in proper working order. Report any problems to the clubhouse front desk.
 - 2. While you are hosting your event you may use the refrigerators, but they must be emptied out at the end of the event. Please restore shelving to the original placement.
 - 3. Failure to empty contents of refrigerator may incur a charge to club for having maintenance take care of your duties.
- C. Stove, Ovens and Microwave:
 - 1. All stoves, ovens and microwaves are in proper working order. Report any problems to the clubhouse front desk.
 - 2. Remember to turn ovens and burners off after you are done.
 - 3. Stove top must be cleaned.
 - 4. If you spilled food in the ovens, report to clubhouse front desk for

directions.

D. Dishwasher:

1. Dishwasher is in working order. Report any problems to the Front desk.
2. If you plan to use the dishwasher you must load it, fill it with soap, and run it before you leave your event. Let the clubhouse front desk know so it can be unloaded the next day.

E. Sinks and Counters:

1. Sinks and Counters are in good condition and the sink is in working order. If you see anything out of the ordinary, please report it to the clubhouse front desk.
2. Sinks and Counters must be cleaned after your event is finished.
3. Wipe out all dirt and garbage from sink and clean out of any food debris in drain.
4. All counters must be cleaned and wiped down with counter cleaner after use.

F. Cabinets:

1. Wipe down any cabinets where you may have spilled food or beverage.

G. Garbage and Recycle:

1. All trash must be put in garbage bags that are provided in the kitchen area.
2. Day event – All trash must be carried outside to dumpster.
3. Evening event - During the event residents must pull trash and carry to dumpster. After event, tie bags and leave in kitchen for the cleaning crew.

H. Recycle Cans:

1. Please only place glass/plastic bottles and cans in the recycle bin. Do not throw garbage in recycle bins.

I. Pots/Pans/Items In Cabinets:

1. If you use any items in the cabinets; e.g., utensils, pots, pans, etc. you are responsible to wash them and return them to their proper place.

J. Floor:

1. If you spill anything on the floors you must clean up all spills. If you need a broom or mop check with the Front desk for availability.

K. Cleaning Supplies:

1. Cleaning cabinet will have supplies: dishwasher detergent, dishwashing soap, gloves, and granite cleaner

4.17 Bar Area:

- A. The bar area may be used during club activities and special events. No alcohol shall be stored in the bar area or refrigerator except on a temporary basis while using the area. The North Carolina Alcoholic Beverage (ABC) Commission regulates and controls alcoholic beverages in North Carolina.

Please Note:

All cost for excessive cleaning, trash removal or damage, occurring during or in relationship to any function will be the responsibility of the individual or club making the reservation and will be charged accordingly.

The Community Manager may remove items from the building, up to and including food, drink, alcohol, clothing items, etc.

CHAPTER FIVE

OUTDOOR AND NATURAL AREAS

5.1 Outdoor Areas:

- A. There are various outdoor areas throughout Carolina Arbors that can be used for self-directed or passive recreation activities; e.g., walking trails, pocket parks and open areas adjacent to Association facilities. All areas are unsupervised and caution should be exercised when using them.

5.2 Enjoyment and Protection of Wildlife:

- A. The lakes, ponds, streams and other bodies of water within Carolina Arbors are provided for primarily aesthetic purposes and storm water management. Certain areas are designated as wetlands or migration and preservation areas and are restricted as to use by covenants approved by the U.S. Army Corps of Engineers.

5.3 Hunting:

- A. Hunting and the discharge of firearms are strictly prohibited.

5.4 Bocce Courts:

- A. Outdoor bocce courts are available for recreational use. Operational responsibility for the bocce courts rests with the Lifestyle Director and Community Manager, who are tasked with overseeing related policies and rules. Maintenance of the bocce courts rests with the Association's Community Manager.
- B. Bocce courts will be open daily from dawn until dusk, weather permitting. Use will be allowed on a first-come-first-serve basis. As participation levels increase within Carolina Arbors, additional rules and restrictions on duration of play, reservations or other topics may be created.
- C. Upper and lower body garments must be worn at all times and soft soled shoes are recommended.
- D. Dedicated time for bocce ball play may be granted to the Bocce Chartered Club. Open playtime will otherwise apply but will be suspended during the periods designated for the Chartered Club.
- E. An age-qualified resident adult must accompany children under the age of nineteen (19).
- F. Care and replacement of equipment is the responsibility of the users.
- G. When playing bocce, individuals should walk back and forth on the concrete walkways between the courts, rather than on the carpeted play surface.

5.5 Tennis Courts and Pickleball Courts:

- A. Outdoor tennis courts and pickleball courts are available for recreational use and operational responsibility rests with the Lifestyle Director. Maintenance of the tennis courts rests with the Association's Community Manager and Maintenance Manager.
- B. Appropriate tennis/pickleball apparel is required as defined by Community Management. Hard-soled footwear or street shoes are not allowed. Also shoes with basketball type deeply grooved soles are not allowed
- C. All members must have their Identification Card with them while using the courts (and likewise for renters with Renter's Cards and those with Temporary Identification Cards). Guests of residents or renters must pre-register at the clubhouse front desk and wear their guest wristbands while using the courts.
- D. Courts will be open daily from dawn to 10:00 P.M., subject to weather and maintenance requirements. Lights are available for nighttime play until 10PM daily.

- E. When the Association provides tennis lessons, they will be open to the entire Carolina Arbors community and a fee may be charged. Individuals or Chartered Clubs may arrange other lessons on their own time and at their own expense.
- F. All players play at their own risk. If players encounter excessive water or debris on the courts, they should not begin play, and should notify the Maintenance Manager or Community Manager.
- G. An age-qualified resident adult must accompany children under the age of nineteen (19).
- H. Court users are expected to clean off their shoes before entering Piedmont Hall.

5.6 Dog Park: The Dog Park includes the small and large fenced areas as well as the landscaped area surrounding the fences.

- A. Use of the Dog Park is at your own risk.
- B. Dogs using the Dog Park must keep vaccinations up to date including Rabies, Distemper and Bordetella. Owners using the Dog Park shall provide Management with current vaccination records as a condition of using the dog park.
- C. Dogs are not allowed into the park that are younger than three (3) months, in heat, sick, or aggressive.
- D. Owners are responsible for any damage or injury caused by their dogs while in the Dog Park due to aggressive or antisocial behavior.
- E. Injuries sustained through normal, social behavior are the sole responsibility of the injured dog's owner.
- F. No prong or spike collars allowed to be worn in the fenced area of the Dog Park.
- G. Owners are required to clean up after their dogs, inside and outside the fenced area.
- H. No other animals are allowed inside the Dog Park fenced area.
- I. Dogs must be under voice or leash control of their owners at all times.
- J. Any dog behaving aggressively must be immediately controlled or removed from the Dog Park.

- K. No more than three (3) dogs per person at any one time are allowed in the Dog Park.
- L. Children under twelve (12) years of age must be supervised by an adult while in the Dog Park.
- M. No dogs over 35 lbs. may be in the small park.
- N. Dogs weighing less than 35 lbs. may use the large park at their own risk.
- O. Dog food in bowls, long-lasting chews, and glass containers are not allowed within the fenced area of the Dog Park.
- P. Owners must repair holes or disturbed areas created by their dogs.
- Q. Guests of residents may use the dog park after providing current vaccination records for their dogs and signing a waiver attesting that they have received the policies and agree to abide by the rules. No more than 3 dogs may be registered to any household, which includes guest dogs.
- R. Guests must be accompanied by a resident whenever using the Dog Park.
- S. Dog bites must be reported to the Durham County animal Control (919-560-0630).
- T. Dog Park users must immediately leave the fenced area of the Dog Park when requested to do so by the Community Manager or law enforcement personnel.
- U. Professional dog trainers may not use the park to conduct their business unless it is by invitation of the Lifestyle Director for an Association sponsored event.
- V. Bicycles, rollerblades, skates, skateboards, and strollers are prohibited within the fenced Dog Park area.
- W. All Durham City, County and North Carolina animal ordinances apply within the Dog Park.

Section 5.7. Pets upon Common Area and Lots:

- A. That no animals of any kind, except a total of three (3) dogs, or three (3) cats, or a combination of no more than a total of three (3) dogs or cats, and a total of two (2) birds, can be raised, bred, or kept on any Lot. That any other pet may be kept only upon approval of the Board, which approval may be withheld at the sole discretion of the Board. That no exotic pets, as determined in accordance with the Durham City Code, may be kept on a Lot. That no monkeys, snakes, pigs, or ferrets may be kept on any Lot in any event.

- B. That any fecal waste deposited by pets on any Lot shall be cleaned up and removed at least once every seven (7) days. That fecal waste deposited by any Pet upon any portion of the Properties other than the pet owner's Lot shall be immediately removed and contained in a plastic bag or other suitable container and disposed of in a trash receptacle.
- C. That no pet shall be allowed to roam or run free upon the Properties, except as permitted in designated dog parks. That any pet must be leashed when not contained within a dwelling.
- D. That no pet may present an actual threat to the health and safety of the Residents, or cause damage to another Resident's property, including another Resident's pet, or create an unreasonable nuisance or annoyance to Residents. That examples of such behavior include but are not limited to: aggressive behavior to residents or guests which creates fear in a reasonable person; an attack on another pet which causes physical harm; objectionable noise such as excessive barking; repeated and/or excessive damage to property or landscaping; and repeated incidents of failure to remove and dispose of a pet's fecal waste. That any such behavior may result in the Board issuing an order that such pet be removed from the Properties.
- E. That Residents and Guests must comply with applicable City of Durham ordinances regarding animals and pets.
- F. That any violation of the foregoing provisions may result in enforcement action in accordance with the Governing Documents of the Association.

5.8 Community Garden

- A. The community garden plot program is managed by the staff of the Carolina Arbors Management office.
- B. Use of the community gardens are for residents in good standing with the Carolina Arbors Homeowner's Association.
- C. Garden plots are limited to one per street address and are assigned based on a lottery drawing held in January.
- D. The management office will maintain a wait list in the order requests were received when demand exceeds the number of available plots. The wait list will carry over from year to year.
- E. Garden plot users are required to contact the Carolina Arbors Association office if they will not continue to maintain their garden plot.
- F. The Carolina Arbors HOA reserves the right to inspect any and all garden plots at any time throughout the year. Association staff reserves the right to evict, cancel or terminate use of the community garden, without notice, and require user, his/her guests and invitees to vacate the premises if there is any breach

of the rules and regulations of the Community Garden, any violation of Federal, State or local law, or damage to the property.

- G. Garden plots may not become overgrown at any time and weeds may not reach twenty-four (24) inches in height. Garden Plot users must perform weed control in their plot throughout the year.
- H. Garden plot users shall ensure that all fencing, irrigation materials, tools and plants are confined within the boundaries of their garden plot.
- I. Gardening supplies (i.e. wood chips, leaves, manure) may not be placed in any other location except the users own garden plot.
- J. Spreading of leaves, woodchips, carpet, or other materials on the shared paths is not permitted.
- K. Plants may not exceed six (6) feet in height.
- L. Structures must not exceed four (4) feet in height.
- M. Trash cans provided by the Association may not be used to dispose of organic material.
- N. All weeds, sod, soil, grass and other plant debris must be placed in the compost bins provided or removed from the Community Garden area.
- O. Compost bins are located at the garden plot area but are not to be used for disposal of wood or lumber, weed cloth, plastic, wire, or any other non-organic gardening materials. Such materials are to be placed in the trash cans provided, or if the trash cans are full, must be removed from the garden and disposed of properly and may NOT be dumped on vacant lots, in wooded areas, etc.
- P. Residents are not permitted to place yard debris from their private property in the compost bins.
- Q. Garden plot users are permitted to use herbicides, pesticides, and chemical fertilizers in their garden plot in accordance with the manufacturers label and instructions. Dust and spray-type materials may only be applied when winds are below 5 m.p.h.
- R. The use of poison rodent control types of poison is strictly prohibited.
- S. Water, if provided, is a convenience. Garden plot users are responsible for water for their own plot and may need to bring the water needed to the plot.
- T. Only legal plant species may be grown in garden plots.
- U. Use of the Community Garden and garden plots are at your own risk. The

Carolina Arbors Homeowner's Association, Board of Directors, or Management Company shall not be liable for any bodily injury, death, or loss or damage to any personal property of the community garden users, or their guests. Community Garden users and their guests agree to indemnify, reimburse and hold the Carolina Arbors Homeowner's Association, Board of Directors and Management Company harmless against any claims arising out of the use of the Community Garden, including any and all claims or damage to persons or property.